PRACTICE EXAM 14 / EXAM SET 02

Domain 7: Medical Law and Ethics

7 scored questions	4 answer choices per question	Answer key + explanations included

Instructions

Choose the single best answer (A, B, C, or D) for each question. Mark your responses before checking the answer key and detailed explanations at the end of this document. These practice questions are not official NHA examination items.

QUESTIONS

Q01 | Privacy Confidentiality and Information Release

SCENARIO A patient's employer requests the patient's complete office chart. The clinic holds a valid, unexpired patient authorization naming that employer but specifically permitting release of the immunization record only. The recipient's identity has been verified, and no separate legal requirement or other disclosure basis applies to the remaining chart. The assistant is authorized to process releases within the signed authorization's scope.

Which release is supported by the available authorization?

A. The complete chart, because the employer is the named recipient.

B. The immunization record and problem list, because both concern health status.

C. The immunization record, with additional records withheld unless another valid basis is established.

D. A summary of the complete chart, because summaries fall outside the authorization's limits.

Q02 | Scope Ethics and Mandatory Reporting

SCENARIO Applicable law permits a trained medical assistant to perform ordered ear irrigation under the required supervision. A new assistant receives an irrigation order but has never performed the procedure or completed the clinic's competency assessment. The clinic requires documented training and observed competency before an assistant performs it. A coworker suggests watching a short video and proceeding because the office is busy.

Which response appropriately addresses the missing qualification?

A. Tell the supervisor about the training gap so a qualified staff member can perform the procedure.

B. Watch the video and perform the procedure because the order establishes competency.

C. Ask the patient to agree to a first attempt and perform the procedure with that permission.

D. Have the coworker describe the technique by telephone while performing the procedure alone.

Q03 | Consent Patient Rights and Directives

SCENARIO A patient with limited English proficiency is preparing for a nonurgent joint injection. The patient's adult daughter offers to interpret but answers questions for the patient and leaves several physician statements untranslated. The patient asks for a professional interpreter. Clinic policy provides a qualified interpreter at no charge on request and assigns the procedure-specific consent discussion to the treating physician.

Which arrangement best supports the patient's informed and voluntary decision?

A. Have the daughter sign the consent form because she speaks English fluently.
B. Ask the assistant to explain the procedure using an automated translation application.
C. Give the patient an English consent form to review privately before signing.
D. Arrange the qualified interpreter for the physician's consent discussion before proceeding.

Q04 | Scope Ethics and Mandatory Reporting

SCENARIO A medical equipment supplier offers a medical assistant a personal gift card for each Medicare patient the assistant persuades to select that supplier. The supplier says the patient will still receive the ordered equipment. Clinic policy prohibits accepting personal rewards for patient referrals and directs staff to report such offers to the compliance officer. No gift has been accepted.

Which response appropriately addresses the offer?

A. Accept the cards if the supplier provides the equipment ordered by the clinician.
B. Decline the offer and report the proposed referral payments to the compliance officer.
C. Accept the cards if their value is small and the patients are told about them.
D. Ask the supplier to give the cards to the staff as a group instead of individually.

Q05 | Privacy Confidentiality and Information Release

SCENARIO A patient calls after receiving another patient's laboratory report as an attachment through the clinic's patient portal. The caller has opened the attachment and can see the other patient's name and results. Clinic policy requires immediate internal reporting of misdirected protected information to the privacy officer, who coordinates containment, risk assessment, and any required notifications.

Which action should the assistant take on discovering the error?

A. Ask the caller to delete the attachment and close the matter once deletion is confirmed.
B. Promptly report the incident through the privacy process and follow approved containment instructions.
C. Wait for the affected patient to complain before deciding whether to report the incident.
D. Tell the caller it is harmless because the clinic's portal is password protected.

Q06 | Consent Patient Rights and Directives

SCENARIO An adult with decision-making capacity brings a newly executed health care power of attorney naming a sister instead of a son. The clinic's designated reviewer has verified that the new document validly replaces the old designation under applicable law. Policy requires retaining historical versions, marking the current document, updating representative information, and notifying the care team. The assistant is authorized to perform these record updates but not to change clinical orders.

Which record-handling action implements the verified change?

A. Delete the previous document so the chart contains only the new designation.

B. Keep the son as the current agent until he agrees to the patient's change.

C. List both relatives as simultaneous agents to avoid choosing between the documents.

D. File the new document as current, mark the prior version as superseded, update the agent information, and notify the team.

Q07 | Scope Ethics and Mandatory Reporting

SCENARIO At a Florida primary care office, a patient whose stroke-related disabilities substantially impair self-care is documented as a vulnerable adult. In private, the patient tells the assistant, "My caregiver uses my debit card to buy things for himself and refuses to buy my groceries." The assistant has not reviewed bank records. Florida's applicable rule requires immediate reporting to the central abuse hotline when there is reasonable cause to suspect exploitation of a vulnerable adult. The assistant is making that report and notifying the provider without delay.

Which report entry best distinguishes reported information from established facts?

A. "Caregiver committed financial theft; bank records confirm misuse of the patient's account."

B. "Patient cannot manage money because of stroke; the caregiver's purchases are therefore unauthorized."

C. "Patient stated that the caregiver uses the patient's debit card for personal purchases and refuses to buy groceries; financial records have not been reviewed."

D. "Patient alleges misuse of money, but exploitation is unsubstantiated and should be recorded only after the caregiver is interviewed."

ANSWER KEY & EXPLANATIONS

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01 C	02 A	03 D	04 B	05 B	06 D
07 C					

DETAILED EXPLANATIONS

Q01 | Correct answer: C

The immunization record, with additional records withheld unless another valid basis is established.

The authorization identifies both the recipient and the information permitted for release. Naming the employer does not expand a limited authorization to the complete chart, and summarizing unauthorized information does not solve the problem. The assistant may release the authorized immunization record through the approved process while withholding information beyond its scope.

Q02 | Correct answer: A

Tell the supervisor about the training gap so a qualified staff member can perform the procedure.

The order, applicable law, and clinic competency requirements must all be satisfied before this assistant performs the procedure. An order or patient permission does not supply missing training and observed competency. The supervisor can arrange a qualified staff member for the current procedure and appropriate training for the new assistant.

Q03 | Correct answer: D

Arrange the qualified interpreter for the physician's consent discussion before proceeding.

The patient has requested professional interpretation, and the daughter's incomplete interpretation does not support an adequate consent discussion. Arranging the clinic's qualified interpreter allows the physician to discuss procedure-specific risks, benefits, alternatives, and the patient's choice in an understandable way. The daughter does not gain decision-making authority merely by speaking English, and an assistant or translation application should not replace this consent discussion.

Q04 | Correct answer: B

Decline the offer and report the proposed referral payments to the compliance officer.

Personal rewards for steering patients create a conflict of interest and violate the stated policy. Referrals should reflect patient needs and preferences rather than staff rewards. Payments intended to induce referrals involving Medicare-covered services or items also raise a potential federal anti-kickback concern for compliance review. Equipment quality, disclosure to patients, or sharing the rewards with coworkers does not resolve the proposed referral incentive.

Q05 | Correct answer: B

Promptly report the incident through the privacy process and follow approved containment instructions.

The misdirected attachment is a privacy incident that requires prompt internal reporting under the stated policy. The privacy officer coordinates the assessment and any required notifications; the assistant should not independently dismiss the disclosure or decide that deletion alone resolves it. Password protection of the portal does not authorize one patient to receive another patient's report.

Q06 | Correct answer: D

File the new document as current, mark the prior version as superseded, update the agent information, and notify the team.

After the designated reviewer verifies the change, the assistant should make the current designation clear and preserve the document history according to policy. Leaving both relatives listed as simultaneous agents misrepresents the verified replacement, and deleting the prior document destroys the retained history. Updating representative documentation does not authorize the assistant to change clinical orders.

Q07 | Correct answer: C

"Patient stated that the caregiver uses the patient's debit card for personal purchases and refuses to buy groceries; financial records have not been reviewed."

This entry attributes the information to the patient and accurately states the limit of what has been verified. The reported conduct supports suspicion and the required report without proof of a crime or a caregiver interview. Declaring theft confirmed or inferring financial incapacity from a stroke alone adds unsupported conclusions.

End of Practice Exam